

ASCII MASTER FLOW – PANEL 1/12: Part XVI: four distinct constitutional techniques

ROOT: inclusion is pursued through different legal effects.

REPRESENTATION -> Arts 330-334A.

SERVICES -> Art 335 with Arts 15-16 cross-route.

SAFEGUARDS -> Arts 338-340.

IDENTIFICATION -> Arts 341-342A.

FIREWALL: list != quota != commission report != welfare scheme.

ASCII MASTER FLOW – PANEL 2/12: SC/ST legislative seats and territorial electorate

ART 330 -> Lok Sabha SC/ST seats

ART 332 -> Assembly SC/ST seats plus specified North-East rules.

SEAT/CANDIDACY RESERVED -> all constituency electors vote ordinarily.

LIMIT: no Rajya Sabha or Legislative Council reservation under these Articles.

TRAP: political reservation != separate electorate.

ASCII MASTER FLOW – PANEL 3/12: Article 334 clocks and Anglo-Indian transition

104TH AMENDMENT

SC/ST seat reservation -> eighty years from commencement -> 25 January 2030.

Anglo-Indian nomination -> seventy-year clock not extended -> ceased in 2020.

ARTS 336-337 -> ten-year transitional protections exhausted.

TRAP: cessation through time clause != automatic textual deletion.

ASCII MASTER FLOW – PANEL 4/12: 106th Amendment: five-gate status chain

ENACTMENT / INCORPORATION

- > Gazette-appointed COMMENCEMENT under section 1(2)
- > first post-commencement census
- > relevant figures published
- > delimitation for this purpose
- > electoral operation under Art 334A.

SCOPE: Lok Sabha, State Assemblies and Delhi Assembly; not Rajya Sabha/Councils.

ASCII MASTER FLOW – PANEL 5/12: Delimitation and women-within-SC/ST seats

ARTS 330A / 332A -> one-third design, including one-third within SC/ST reserved seats.

ART 334A -> fifteen-year duration from operational commencement; later continuation by law.

ROTATION -> after subsequent delimitation as Parliament provides.

TRAP: census publication alone does not draw constituencies.

ASCII MASTER FLOW – PANEL 6/12: Article 335 and the equality-service bridge

SC/ST CLAIMS IN SERVICES

+ maintenance of administrative efficiency.

82ND AMENDMENT PROVISIO -> qualifying-mark/evaluation relaxation for promotion reservation.

M. Nagaraj (2006) + Jarnail Singh (2018) -> controlling promotion doctrine.

TRAP: no fixed quota and no definition of efficiency.

ASCII MASTER FLOW – PANEL 7/12: NCSC, NCST, NCBC and neighbouring powers

ART 338 -> NCSC | 338A -> NCST | 338B -> NCBC

INQUIRY + REPORT + ADVICE + CIVIL-COURT POWERS -> accountability, not binding decree.

ART 339 -> Scheduled Areas/ST welfare supervision.

ART 340 -> temporary backward-class investigation commission.

ART 275 -> separate welfare-grant route.

ASCII MASTER FLOW – PANEL 8/12: SC/ST list authority under Articles 341-342

PRESIDENT -> initial State/UT specific specification after required consultation.

PARLIAMENT BY LAW -> inclusion/exclusion.

STATE -> cannot alter list by executive or legislation.

TERRITORIALITY: status is not automatically pan-India.

TRAP: commission recommendation does not amend the list.

ASCII MASTER FLOW – PANEL 9/12: SEBC federalism: 102nd to 105th Amendments

102ND -> Arts 338B + 342A + Art 366(26C)

Jaishri Laxmanrao Patil (2021) -> pre-105th interpretation.

105TH -> Central List for Central purposes + State/UT own-purpose list by law.

LIMIT: State SEBC power does not alter SC/ST lists.

ASCII MASTER FLOW – PANEL 10/12: EWS as a separate equality route

103RD AMENDMENT -> Arts 15(6) and 16(6)

ADDITIONAL RESERVATION -> up to 10% in each clause's field.

JANHIT ABHIYAN (2022) -> upheld 3:2.

FIREWALL: EWS != Article 342A SEBC list != Article 335 SC/ST service claim.

ASCII MASTER FLOW – PANEL 11/12: Davinder Singh (2024): distribution, not list alteration

~~K.V. Chinnaiah v. State of Andhra Pradesh (2004) – earlier indivisibility rule~~

Davinder Singh (2024) -> overruled it on sub-classification.

STATE MAY -> use evidence for fair distribution within notified SC class.

STATE MAY NOT -> alter Art 341 list or wholly exclude a listed caste.

No automatic nationwide mandate.

ASCII MASTER FLOW – PANEL 12/12: UPSC decision tree and qualified verdict

1 FIELD -> legislature/local body/education/service

2 CLASS -> SC/ST/SEBC/EWS.

3 AUTHORITY -> President/Parliament/State/commission/delimitation body.

4 EFFECT -> identify/benefit/monitor/adjudicate.

5 STATUS -> amendment, case, notification and date.

VERDICT: substantive equality requires exact-source discipline.